

**BEFORE THE
FEDERAL MARITIME COMMISSION**

TOYOTA DE PUERTO RICO CORP.,

Complainant,

v.

**PUERTO RICO PORTS AUTHORITY,
CROWLEY PUERTO RICO SERVICES
INC., and OCEANIC GENERAL AGENCY
INC.,**

Respondent.

Docket No. 19-02

**SECTION 11 OF THE SHIPPING
ACT OF 1984**

PUERTO RICO PORTS AUTHORITY'S MOTION FOR LEAVE TO FILE SUR-REPLY

(Re: filing of the *Dantzler Petition for Cert.* and addressing a misrepresentation by Toyota)

**TO MS. RACHEL E. DICKON
SECRETARY, FEDERAL MARITIME COMMISSION**

COMES NOW respondent **Puerto Rico Ports Authority** (hereinafter the "PRPA"), through its undersigned counsel, and respectfully states and requests as follows:

On January 26th, Toyota de Puerto Rico Corp. ("Toyota") filed its "Reply in Support of Toyota's Brief in Compliance with Order Lifting Stay and Requiring Briefing to Address Lack of Sovereign Immunity" ("Reply"). After carefully reviewing the Reply and receiving the *Dantzler* plaintiffs' *Petition for a Writ of Certiorari* on the evening of Friday, January 29th, PRPA believes that a *brief* response to Toyota's Reply is necessary (i) to address a significant misrepresentation contained in that filing, which could lead the Federal Maritime Commission astray and cause an erroneous ruling, and (ii) other new matters raised in that Reply.

Thus, PRPA very respectfully request leave to file a brief Sur-Reply and hereto tenders said filing, which would be filed should the Hon. Commission grant it such leave. (See, Attachment.)

WHEREFORE, PRPA very respectfully requests that this Honorable Commission **GRANT** it leave to file a brief Sur-Rely to Toyota's Reply.

Certificate of Service: I hereby certify that on this same date the foregoing notice was served upon the following attorneys and participants of record: (a) counsel for **Toyota de Puerto Rico Corp.** - Rafael Escalera Rodriguez, Esq. (escalera@reichardescalera.com), Sylvia M. Arizmendi, Esq. (arizmendis@reichardescalera.com), Alan M. Vizcarrondo Santana, Esq. (vizcarrondo@reichardescalera.com), Zarel J. Soto Acaba, Esq. (zsoto@reichardescalera.com); (b) counsel for **Crowley Puerto Rico Services, Inc.** – Marc J. Fink, Esq. (mfink@cozen.com), Wayne R. Rohde, Esq. (wrohde@cozen.com) and Matthew Howell, Esq. (mhowell@cozen.com); and (c) counsel for **Oceanic General Agency Inc.** – Henry P. Gonzalez (gonzalez@gdvlegal.com) and Jose E. Alfaro Delgado (joseealfaro@yahoo.com).

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 5th day of February, 2021.

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s/Thomas Trebilcock Horan

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